

		\$95,504.53 total PAGA penalties (\$71,628.40 to LWDA). Plaintiff is ordered to submit <u>by June 4, 2026</u> a proposed order and judgment (including the above amounts) <u>with all exhibits attached</u> (settlement agreement; three amendments thereto; and notice letter (including the above amounts)). The final accounting hearing is scheduled for <u>February 4, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiff shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
10	Rodgers v. No Ordinary Moments, Inc. 2023-01349601	Off calendar.
11	Rodriguez v. Han.Sam Corp dba River's Edge Pharmacy 2026-01542228	<u>Defendant Han.Sam Corp dba River's Edge Pharmacy's Motion to Compel Arbitration</u> Defendant Han.Sam Corp dba River's Edge Pharmacy moves for an order compelling plaintiff Cindy Rodriguez to arbitrate her individual claims and dismissing her class allegations. For the following reasons, defendant's motion is denied. The right to arbitration depends upon contract; a petition to compel arbitration is simply a suit in equity seeking specific performance of that contract. <i>Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565. The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. <i>Id.</i> <i>Existence of an arbitration agreement</i> A court resolves a dispute regarding the existence of an arbitration agreement using a three-step burden-shifting process. <i>Espejo v. Southern California Permanente Medical Group</i> (2016) 246 Cal.App.4th 1047, 1056. "The arbitration proponent must first recite verbatim, or provide a copy of, the alleged agreement. (Cal. Rules of Court, rule 3.1330; <i>Condee v. Longwood Management Corp.</i> (2001) 88 Cal.App.4th 215, 219, 105 Cal.Rptr.2d 597.) A movant can bear this initial burden 'by attaching a copy of the arbitration agreement purportedly bearing the opposing party's signature.' (<i>Espejo, supra</i>, 246 Cal.App.4th at p. 1060, 201 Cal.Rptr.3d 318.) At this step, a movant need not 'follow the normal procedures of document authentication' and need only 'allege the existence of an agreement and support the allegation as provided in rule [3.1330].' (<i>Condee, supra</i>, at pp. 218-219, 105 Cal.Rptr.2d 597.) [¶] If the movant bears its initial burden, the burden shifts to the party opposing arbitration to identify a factual

dispute as to the agreement's existence—in this instance, by disputing the authenticity of their signatures. To bear this burden, the arbitration opponent must offer admissible evidence creating a factual dispute as to the authenticity of their signatures. The opponent need not prove that his or her purported signature is not authentic, but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent, who retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the signature. (*Espejo, supra*, 246 Cal.App.4th at p. 1060, 201 Cal.Rptr.3d 318.)” *Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (emphasis in original).

When an opposing party disputes that he or she signed an arbitration agreement electronically, the petitioner has the burden of proving by a preponderance of the evidence that the electronic signature is authentic. *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846; *see also Fabian v. Renovate America, Inc.* (2019) 42 Cal.App.5th 1062, 1067; *Espejo, supra*, 246 Cal.App.4th at 1060 (“[W]e conclude that defendants here met their initial burden by attaching to their petition a copy of the purported arbitration agreement bearing Espejo's electronic signature. Once Espejo challenged the validity of that signature in his opposition, defendants were then required to establish by a preponderance of the evidence that the signature was authentic.”). The burden of authenticating an electronic signature is not great. *Fabian*, 42 Cal.App.5th at 1067.

Defendant carried its initial burden by submitting the declaration of Genevieve Benjamin. Benjamin, who states she is defendant’s CEO, states that her job duties “include providing leadership and management, spearhead[ing] development, communication, and implementation of growth strategies, collaboration with the executive team, leading the management team, and acting as lead ‘client-care’ officer.” Benjamin Decl. (ROA 22) ¶¶ 1, 2. Benjamin states that on or about June 12, 2023 defendant extended plaintiff a written offer letter for employment, which plaintiff signed and accepted. *Id.* ¶ 3. Benjamin states that enclosed with the offer letter was a “Dispute Resolution Agreement” (DRA), which Benjamin states is a “voluntary agreement that expressly provides that disputes arising out of or relating to Plaintiff’s employment would be resolved through final and binding arbitration.” *Id.* Benjamin states that a true and correct copy of plaintiff’s signed DRA is attached to her declaration as Exhibit 1. *Id.* & Ex. 1. Benjamin states that the DRA is maintained in plaintiff’s personnel file. *Id.* ¶ 6. Exhibit 1 to the Benjamin Declaration consists of an offer letter with enclosed DRA and Confidentiality Agreement. Benjamin Decl. Ex. 1. The offer letter is dated June 12, 2023 and is addressed to “Cindy Rodriguez”; it bears an electronic signature under “acknowledgment.” *Id.* The DRA and Confidentiality Agreement are both dated June 12, 2023, and each bears an electronic signature next to or above the typewritten name “Cindy Rodriguez.” *Id.*

Contrary to plaintiff’s claim, Benjamin’s declaration and its exhibit carried defendant’s initial burden. *See Iyere*, 87 Cal.App.5th at 755

(the moving party bears its “initial burden by attaching a copy of the arbitration agreement purportedly bearing the opposing party’s signature,” and “need not ‘follow the normal procedures of document authentication’ and need only ‘allege the existence of an agreement and support the allegation as provided in rule [3.1330]”). The burden thus shifted to plaintiff, the party opposing arbitration, to identify a factual dispute as to the agreement’s existence. *Id.*

Plaintiff states in her declaration submitted in opposition that (i) she “do[es] not recall ever being sent, presented with, reviewing, or signing the purported arbitration agreement . . . at any time, and (ii) she “do[es] not recognize the signature” on the arbitration agreement. Rodriguez Decl. (ROA 31) ¶¶ 3, 4. Plaintiff’s statements are sufficient to create a factual dispute as to the authenticity of her electronic signature. *See Espejo*, 246 Cal.App.4th at 1054. The burden thus shifted back to defendant, who retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the electronic signature.

To attempt to carry this burden, defendant submitted a supplemental declaration from Benjamin with its reply. In her supplemental declaration, Benjamin states: “Employees for the Company sign documents electronically, and the Company receives a digital receipt of that signature. Here, the Company received a digital receipt when Plaintiff digitally signed the [DRA] on June 23, 2023, agreeing to arbitrate claims against the Company.” Supp. Benjamin Decl. (ROA 41) ¶ 2. Benjamin states that a true and correct copy “of the digital receipt received from the Company when Plaintiff signed the [DRA]” is attached to her supplemental declaration as Exhibit 2. *Id.* & Ex. 2. Exhibit 2 to the Supplemental Benjamin Declaration is a 5-page document; the first page bears a “DocuSign” logo at the top. The first two pages appear to be some sort of printout reporting “Certificate of Completion,” “Record Tracking,” and “Signer Events.” *Id.* The typewritten name “Cindy Rodriguez” appears in the “Signer Events” section, as does an electronic signature and “6/12/2023” in several places. *Id.* The name “Hala Ortega,” which also appears on the offer letter, DRA and Confidentiality Agreement, also appears in the “Signer Events” section, along with an electronic signature. *Id.* The other three pages of Exhibit 2 are entitled “Electronic Record and Signature Disclosure.” *Id.* The top left corner of the first page states: “Electronic Record and Signature Disclosure created on: 7/10/2020 1:56:33 PM [¶] Parties agreed to: Cindy Rodriguez, Hala Ortega.” *Id.*

Benjamin’s supplemental declaration is insufficient to carry defendant’s shifted burden of proving, by a preponderance of the evidence, the authenticity of the electronic signature. As an initial matter, Benjamin states in her supplemental declaration that plaintiff electronically signed the DRA on June 23, 2023. Supp. Benjamin Decl. ¶ 2. That is not the date stated in Benjamin’s initial declaration (ROA 22, ¶ 4) and it is not the date on the DRA. Benjamin Decl. (ROA 22) Ex. 1. In addition, Benjamin’s supplemental declaration does not set forth facts showing, *inter*

alia, that only plaintiff could have affixed her electronic signature to the DRA, such as by means of a unique username and password, or how the “digital receipt” attached to the Supplemental Benjamin Declaration purportedly shows that plaintiff, as opposed to someone else, electronically signed the DRA. Indeed, the Supplemental Benjamin Declaration does not explain the documents attached thereto as Exhibit 2 at all, including why the 3-page “Electronic Record and Signature Disclosure” states Cindy Rodriguez and Hala Ortega purportedly agreed to it on July 10, 2020, i.e., almost 3 years before defendant states plaintiff accepted its employment offer and signed the DRA.

In sum, for the foregoing reasons, defendant did not carry its burden of proving by a preponderance of the evidence that plaintiff electronically signed the DRA. Even if defendant had done so, however, the agreement is unconscionable, as discussed below.

The Federal Arbitration Act applies

Defendant argues the Federal Arbitration Act (FAA) applies. The DRA states: “This Agreement is governed by the Federal Arbitration Act, 9 U.S.C. § 1 et seq. (‘FAA’) and evidences a transaction involving commerce. The Parties acknowledge and agree that the FAA applies to this Agreement because it is a contract involving interstate commerce and the work to be performed by Employee affects commerce between the states.” Benjamin Decl. (ROA 22) Ex. 1 (DRA, at 1-2).

“The [Federal Arbitration Act] applies to contracts that involve interstate commerce (9 U.S.C. §§ 1, 2), but since arbitration is a matter of contract, the FAA also applies if it is so stated in the agreement.” *Barrera v. Apple American Group LLC* (2023) 95 Cal.App.5th 63, 76; *see also Tuufuli v. West Coast Dental Administrative Services, LLC* (2026) 117 Cal.App.5th 1048, 340 Cal.Rptr.3d 858, 862 (same); *Davis v. Shiekh Shoes, LLC* (2022) 84 Cal.App.5th 956, 963 (same); *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355 (“the presence of interstate commerce is not the only manner under which the FAA may apply. . . . [T]he parties may also voluntarily elect to have the FAA govern enforcement of the Agreement”). In addition, plaintiff does not dispute the FAA applies. The court finds the FAA applies.

Unconscionability

Plaintiff argues the arbitration agreement is unconscionable. In *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, the California Supreme Court recognized that notwithstanding the strong public policy favoring arbitration, “‘generally applicable contract defenses, such as . . . unconscionability, may be applied to invalidate arbitration agreements without contravening’ the FAA’ or California law.” *Id.* at 125; *see AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 339.

“Unconscionability analysis begins with an inquiry into whether the contract is one of adhesion. [Citation.] ‘The term [contract of adhesion] signifies a standardized contract, which, imposed and

drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.' [Citation.] If the contract is adhesive, the court must then determine whether 'other factors are present which, under established legal rules—legislative or judicial—operate to render it [unenforceable].'" *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 113.

To declare an agreement unenforceable, a court must find both procedural and substantive unconscionability. Procedural unconscionability focuses on oppression or surprise due to unequal bargaining power; substantive unconscionability looks at overly harsh or one-sided results. *Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1243; *see also OTO*, 8 Cal.5th at 129-30. "[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." *Armendariz*, 24 Cal.4th at 114. Plaintiff bears the burden to demonstrate the arbitration agreement is procedurally and substantively unconscionable. *Sanchez v. Carmax Auto Superstores California, LLC* (2014) 224 Cal.App.4th 398, 402.

The arbitration agreement is a contract of adhesion. The arbitration agreement is a preprinted form agreement imposed as condition of employment as stated in the offer letter. Benjamin Decl. Ex. 1 (Offer Letter at 1) ("This offer of employment is also conditioned on . . . your execution of and agreement to each of the terms and conditions of the Company's Confidentiality Agreement and Dispute Resolution Agreement, copies of which are enclosed with this letter"). The adhesive nature of the agreement is evidence of some degree of procedural unconscionability. *Sanchez*, 224 Cal.App.4th at 403.

Defendant argues the DRA is voluntary and "not a condition of employment" because the DRA so states. Benjamin Decl. Ex. 1 (DRA at 1, 4). The DRA does so state, but, as stated above, the offer letter states the contrary. The contradiction in terms between the offer letter and the DRA on this point is evidence of some degree of procedural unconscionability. In addition, defendant does not dispute that the DRA is a preprinted form agreement drafted by defendant.

As noted above, substantive unconscionability examines the fairness of a contract's terms to ensure that a contract of adhesion does not impose terms that are overly harsh, unduly oppressive, or unfairly one-sided. *OTO*, 8 Cal.5th at 129-30. The court focuses on terms that unreasonably favor the more powerful party, impair the integrity of the bargaining process, contravene public interest or policy, or attempt to impermissibly alter fundamental legal duties. This includes unreasonable or harsh terms or ones that undermine the nondrafting party's reasonable expectations. *Id.* at 130.

Plaintiff argues the arbitration agreement is substantively unconscionable pursuant to *Cook v. University of Southern*

California (2024) 102 Cal.App.5th 312. In *Cook*, the court held that “[a]n arbitration agreement of infinite duration [that] requires an employee to arbitrate all claims against the employer, its agents, affiliates, and employees irrespective of whether they arise from the employment relationship” is unconscionable. *Id.* at 316.

The arbitration agreement in *Cook* required arbitration of “all claims, whether or not arising out of Employee’s University employment, remuneration or termination, that Employee may have against the University or any of its related entities, including but not limited to faculty practice plans, or its or their officers, trustees, administrators, employees or agents, in their capacity as such or otherwise; and all claims that the University may have against Employee.” *Id.* at 321. As the *Cook* court stated, “[t]he plain language of the agreement requires Cook to arbitrate claims that are unrelated to her employment with USC.” *Id.* The *Cook* agreement also “survived indefinitely” following Cook’s termination of employment. *Id.* at 325; see *id.* (“The agreement expressly states that it ‘shall survive the termination of Employee’s employment, and may only be revoked or modified in a written document that expressly refers to the “Agreement to Arbitrate Claims” and is signed by the President of the University”). In addition, the *Cook* agreement lacked mutuality because it required Cook to arbitrate any and all claims she might have against her employer “or any of its related entities, including but not limited to faculty practice plans, or its or their officers, trustees, administrators, employees or agents, in their capacity as such or otherwise,” but it did not require the employer’s “related entities” to arbitrate their claims against Cook. *Id.* at 326.

Based on these provisions, the court affirmed the trial court’s order finding the arbitration agreement unconscionable. The court also affirmed the trial court’s finding that unconscionability permeated the arbitration agreement as a whole and its refusal to sever the unconscionable provisions.

The DRA contains provisions similar to those found unconscionable in *Cook*. The first paragraph of the DRA states:

“To the fullest extent permitted by applicable law, the undersigned parties both agree that *any and all disputes* between Employee and HanSamCorp. Dba RE Pharmacy (the ‘Company’), shall be resolved solely through binding arbitration pursuant to this agreement.”

Benjamin Decl. Ex. 1 (DRA at 1) (*italics added*). The second paragraph of the DRA states:

“This Dispute Resolution Agreement (‘Agreement’) applies to any dispute arising out of or related to Employee’s employment with the Company or termination of employment (including claims alleging wrongful conduct by coworkers/employees); applies both to claims made by Company against Employees and by Employee against Company; and shall survive after the employment relationship terminates.”

Benjamin Decl. Ex. 1 (DRA at 1). The sixth paragraph of the DRA states:

"Except as it otherwise provides, this Agreement also applies, *without limitation*, to disputes regarding the employment relationship, trade secrets, unfair competition, compensation, breaks and rest periods, termination, or harassment and claims arising under the Uniform Trade Secrets Act, Civil Rights Act of 1964, Americans With Disabilities Act, Age Discrimination in Employment Act, Family Medical Leave Act, Fair Labor Standards Act, Employee Retirement Income Security Act, Genetic Information Non-Discrimination Act, and state statutes, if any, addressing the same or similar subject matters, *and all other state statutory and common law claims.*"

Benjmain Decl. Ex. 1 (DRA at 1) (italics added).

Plaintiff argues the DRA is unconscionably overbroad because it encompasses claims unrelated to plaintiff's employment. Defendant replies that "[t]he DRA is directed to disputes arising out of or related to Plaintiff's employment relationship, including compensation, wage claims, breaks and rest periods, termination, statutory claims, and common law employment-related claims." Reply (ROA 43) at 7:4-6. The DRA does apply to employment-related claims. It also, however, states that it applies to "any and all disputes" between an employee and defendant, and that it applies "without limitation" to "disputes regarding . . . all other state statutory and common law claims." The DRA plainly extends to claims unrelated to plaintiff's employment.

The arbitration agreement contains other problematic provisions. The DRA states: "Employee acknowledges that this Agreement applies to all of Company's related and affiliated entities, shareholders, officers, directors, and employees." Benjamin Decl. Ex. 1 (DRA at 1). The meaning of this provision is unclear, which alone is troublesome, as an arbitration agreement should be written so as to be understood by its signatories. The parties appear to agree, however, that this provision should be interpreted to require an employee to arbitrate all covered claims against defendant and defendant's related and affiliated entities, shareholders, officers, directors, and employees. See Opp. at 13:24-27; Reply at 6:23-7:3. In that case, as in *Cook*, the DRA lacks mutuality. The DRA requires plaintiff to arbitrate "any and all disputes" she may have against defendant or its related and affiliated entities, shareholders, officers, directors and employees, but it does not require these defendant-related entities and people to arbitrate their claims against plaintiff. Defendant does not attempt to justify this one-sidedness, other than to argue unpersuasively that "[t]he inclusion of related entities, officers, directors, and employees does not create the type of unfairly one-sided forum Plaintiff describes." Reply at 7:1-2; see *Armendariz*, 24 Cal.4th at 117-18 ("As has been recognized "'unconscionability turns not only on a 'one-sided' result, but also on an absence of 'justification' for it.'"").

Plaintiff also argues the agreement is unconscionable because it is purportedly of infinite duration. The *Cook* court found substantively unconscionable a provision stating that the agreement “shall survive the termination of Employee’s employment, and may only be revoked or modified in a written document that expressly refers to the ‘Agreement to Arbitrate Claims’ and is signed by the President of the University.” *Cook*, 102 Cal.App.5th at 317. The court rejected USC’s argument that the agreement was not indefinite but rather “terminable at will after a ‘reasonable time.’” *Id.*

Generally, contracts that do not specify a term of duration are terminable at will. *Reigelsperger v. Siller* (2007) 40 Cal.4th 574, 580. In addition, a contract will only be deemed terminable at will after a reasonable period of time if it has neither an express nor implied term of duration. *Zee Medical Distributor Assn. Inc. v. Zee Medical, Inc.* (2000) 80 Cal.App.4th 1, 10. The contract in *Zee* contained a provision stating the contract “shall continue” until specified grounds for termination arose. *Id.* The *Zee* court held the contract contained “a valid, express contractual term of duration” and the termination provisions in the contract “clearly indicate the parties did not contemplate termination at will.” *Id.* at 11.

Relying on *Zee*, the *Cook* court found “[t]he arbitration agreement specifically provides that it will survive unless and until Cook and USC’s president specifically terminate the agreement in a writing, signed by both parties, which expressly mentions the arbitration agreement,” and therefore, because there was an express term of duration, the agreement was not terminable at will after a reasonable time. *Cook*, 102 Cal.App.5th at 326. The court affirmed the trial court’s finding that the duration of the arbitration agreement was substantively unconscionable. *Id.*

The DRA states that it “shall survive after the employment relationship terminates.” Benjamin Decl. Ex. 1 (at 1). This provision is not an express term of duration. This argument does not support a finding of substantive unconscionability.

Plaintiff also argues DRA is unconscionable because it requires plaintiff to waive PAGA claims. The “Class Actions and Representative Actions” section of the DRA states:

“To the maximum extent permitted by law and with the exception of charges filed with the National Labor Relations Board, Employee acknowledges and agrees that Employee does not have the right or authority to pursue any claim against the Company in the form of a class action, *representative action (including individual claims pursued under the California Labor Code’s Private Attorney General Act of 2004, Cal. Lab. Code § 2698 et seq. (‘PAGA’)*, or collective action on behalf of any current or former employees of the Company, the general public, or anyone else alleged to be similarly situated to Employee.

“Employee’s agreement to waive his or her ability to pursue any class, *representative*, collective action or *individual PAGA claims* against the Company *applies to any and all action filed in a state or*

federal court of law as well as in an arbitral forum. The Parties agree that PAGA claims remain individually arbitrable if the representative action waiver is found invalid under state or federal law.”

Benjamin Decl. Ex. 1 (DRA at 3). An employee's right to bring a PAGA action is unwaivable (*Iskanian v. CLS Transportation Los Angeles, LLC* (2014) 59 Cal.4th 348, 383; *see also Navas v. Fresh Venture Foods, LLC* (2022) 85 Cal.App.5th 626, 635 (“Employers may not force employees to waive their right to bring a PAGA action”)), and a prohibition on representative actions is substantively unconscionable. *Hasty v. American Automobile Association* (2023) 98 Cal.App.5th 1041, 1063 (“The ban on *all* representative Act actions thus remains unconscionable because it requires an employee to waive a right that is not waivable.”) (*italics in original*). Thus, the DRA’s purported waiver of an employee’s right to bring PAGA claims in individual and representative capacities is unconscionable. The inclusion of a carve-out for arbitration of individual PAGA claims, which is inconsistent with the DRA’s express waiver of individual PAGA claims in all forums including arbitration, does not cure the unconscionability of the waiver.

Plaintiff also argues the Confidentiality Agreement defendant presented with the DRA and the offer letter renders the DRA unconscionable. Contrary to defendant’s claim, “[u]nder Civil Code section 1642, it is the general rule that several papers relating to the same subject matter and executed as part of substantially one transaction, are to be construed together as one contract [citation].” *Alberto v. Cambrian Homecare* (2023) 91 Cal.App.5th 482, 490. “According to that rule, documents executed together as part of a single transaction are construed together, even if they do not expressly refer to one another.” *Id.*

The Confidentiality Agreement and the DRA should be read together. Defendant asserts plaintiff electronically signed the agreements on the same day as part of the same transaction. Benjamin Decl. Ex. 1. Accordingly, unconscionability in the Confidentiality Agreement can affect whether the DRA is unconscionable. *Alberto*, 91 Cal.App.5th at 491; *see also id.* at 492 (“[S]ince the two agreements were part of a single transaction (Alberto’s hiring and the dispute resolution procedure applicable to Alberto) unconscionability in the Confidentiality Agreement is relevant in determining whether the parties’ agreement to arbitration was unconscionable.”); *Silva v. Cross Country Healthcare, Inc.* (2025) 111 Cal.App.5th 1311, 1322-23.

In light of the foregoing discussion regarding the DRA, however, the court need not reach plaintiff’s arguments that the Confidentiality Agreement also renders the DRA unconscionable.

Severance

The DRA contains a severance clause: “The provisions of this Agreement are severable. If any provision of this Agreement or its application is held invalid, that invalidity shall not affect other

		provisions or applications that can be given effect without the invalid provision or application.” Benjamin Decl. Ex. 1 (DRA at 4). “If a contractual clause is found unconscionable, the court may, in its discretion, choose to do one of the following: (1) refuse to enforce the contract; (2) sever any unconscionable clause; or (3) limit the application of any clause to avoid unconscionable results. [Citation.] The ‘strong legislative and judicial preference is to sever the offending term and enforce the balance of the agreement.’ [Citation.] Though the ‘statute appears to give a trial court some discretion as to whether to sever or restrict the unconscionable provision or whether to refuse to enforce the entire agreement,’ it ‘also appears to contemplate the latter course only when an agreement is “permeated” by unconscionability.’” <i>Ramirez v. Charter Communications, Inc.</i> (2024) 16 Cal.5th 478, 513. As discussed above, several aspects of the DRA are unconscionable. Defendant argues the court should sever any unconscionable provisions because “the central purpose of the DRA is lawful: to require bilateral arbitration of covered employment disputes.” Reply at 8:17-18. To the contrary, as discussed above, the DRA appears drafted to require plaintiff to arbitrate an array of claims she might have against defendant and an undefined list of other entities and people, with defendant able to compel arbitration of claims against it and the other entities and people, and plaintiff only able to compel arbitration of claims by defendant against her. In addition, the agreement contains a plainly unenforceable waiver of an employee’s right to bring PAGA claims. Remedying the deficiencies here would require substantive rewriting of the DRA to limit and contradict its plain language. Under these circumstances, the court declines to sever the unconscionable provisions and declines to enforce the agreement. Plaintiff’s Evidentiary Objections (ROA 35) are overruled. Plaintiff to give notice. <u>Status Conference</u> The court has reviewed the parties’ joint status conference statement filed May 20, 2026 (ROA 37). The May 28, 2026 status conference is continued to <u>September 17, 2026 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. Clerk to give notice.
12	Thompson v. RC USA Holdings, Ltd., et al. 2023-01316096	<u>Plaintiff’s Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff’s motion for preliminary approval of a \$270,000 class action and PAGA settlement. The court grants the motion as follows: